

Musharraf v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 August 2017 · Writ-C No. 38485 of 2017 · **Writ disposed; petitioner relegated to Executive Engineer under clause 6.5; recovery stayed.**

HEADNOTE

A writ challenging electricity recovery for a 7.5 H.P. motor as based on incorrect calculation was disposed of with liberty to approach the Executive Engineer (fourth respondent). That officer was directed to examine the grievance under clause 6.5 of the U.P. Electricity Supply Code, 2005 within three weeks of a certified copy; recovery to remain in abeyance until the Executive Engineer's order.

FACTUAL SUMMARY

The petitioner, Musharraf, challenged recovery of electricity charges for running a 7.5 H.P. motor, alleging that the demand was based on an incorrect calculation. On 24 August 2017 a Division Bench directed him to file a supplementary affidavit placing the demand notice or recovery certificate on record. Counsel for the Electricity Department appeared. After that affidavit was filed, the Department submitted that the billing dispute could be resolved by the fourth respondent under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — Executive Engineer under clause 6.5

HOLDING

A billing dispute alleging incorrect calculation of electricity consumption charges is to be examined by the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed with liberty to approach the fourth respondent, who shall pass an appropriate order within three weeks of presentation of a certified copy; recovery remains in abeyance until that order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY WAS BASED ON AN INCORRECT CALCULATION

Merits of the billing/quantification challenge left to the Executive Engineer under clause 6.5. ¶ 1